

Legal Standard

The Court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. Code Civ. Proc., § 473(a)(1). “Public policy dictates that leave to amend be liberally granted.” *Centex Homes v. St. Paul Fire & Marine Ins. Co.* (2015) 237 Cal.App.4th 23, 32. A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. Cal. Rules of Court, Rule 3.1324(a). The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. Cal. Rules of Court, Rule 3.1324(b).

Analysis

Dodd’s Complaint alleged damages for interference with an express easement traversing Defendants’ property. Bilheimer Decl., ¶ 6. Dodd’s proposed FAC seeks to address the existence of an easement as well as the interference with the same. *Id.* The facts giving rise to the amendment arose subsequent to Defendants’ Answer and Cross-Complaint, as well as extensive settlement discussions. *Id.*

Dodd’s motion is unopposed, and the motion complies with CRC, Rule 3.1324. Accordingly, the unopposed motion is GRANTED. Dodd shall file the proposed FAC within ten (10) days of entry of this order.

9. CU0002216 Peter Zellner et al vs. Amanda Jean Neadeau

No appearances required. The OSC re Dismissal is vacated in light of the Petition for Approval of Minor Compromise filed by Plaintiff set for hearing on March 9, 2026 at 1:30 p.m. in Dept. A.

10. CU0002393 Bobbie Davida Lowe vs. Benjamin Matteo

No appearances required. On the Court’s own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to April 27, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date.